

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Richter	Team: Team # 2	CCRB Case #: 200811042	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/24/2008 11:30 PM	Location of Incident: 31st Avenue and 94th Street	18 Mo. SOL 1/24/2010	Precinct: 115		
Date/Time CV Reported Sat, 07/26/2008 6:29 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 08/01/2008 1:32 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. Officers			115 PCT
2. POM Richard Healey	05746	935002	115 PCT
3. SGT Francis Clough	02280	915065	115 PCT
4. POM Jeffrey Fitterman	23833	934868	115 PCT
5. POM Vincent Calderone	00328	936038	115 PCT
6. An officer			115 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jeffrey Fitterman	Abuse: Officer Jeffrey Fitterman strip-searched § 87(2)(b)	A . Alleged Victim Uncooperative
B . POM Vincent Calderone	Discourtesy: Officer Vincent Calderone spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . SGT Francis Clough	Discourtesy: At the 115th Precinct Stationhouse, Sergeant Francis Clough spoke obscenely and/or rudely to § 87(2)(b)	C . Unsubstantiated
D . An officer	Abuse: At the 115th Precinct Stationhouse, an officer searched § 87(2)(b)'s property.	D . Officer(s) Unidentified
E . SGT Francis Clough	Abuse: At the 115th Precinct Stationhouse, Sergeant Francis Clough threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . Officers	Abuse: At the 115th Precinct Stationhouse, Officers strip-searched § 87(2)(b)	F . Alleged Victim Uncooperative
G . POM Richard Healey	Abuse: Officer Richard Healey damaged § 87(2)(b)'s property.	G . Unsubstantiated

Synopsis

On July 26, 2008, § 87(2)(b) filed his complaint with the Internal Affairs Bureau via telephone. On July 24, 2008 at approximately 11:30 PM, § 87(2)(b) was driving his car somewhere in Queens with three of his friends inside. § 87(2)(b)'s friends were § 87(2)(b) who was sitting in the front passenger seat, § 87(2)(b) sitting behind § 87(2)(b) and § 87(2)(b) who was sitting behind § 87(2)(b). § 87(2)(b) went through a light that was turning red. Two officers, identified by the investigation as PO Fitterman and PO Healy, pulled § 87(2)(b) over. PO Fitterman questioned § 87(2)(b) about whether he smoked marijuana and whether there was anything illegal in the car. PO Fitterman asked § 87(2)(b) if his door was open and § 87(2)(b) said no and opened his door. When § 87(2)(b) opened his door, PO Fitterman looked in the door and around the car using his flashlight. PO Fitterman looked into § 87(2)(b)'s car and said, "I see some weed shavings in the car on the floor." PO Calderone and Sgt. Clough then arrived at the location. The occupants of the individual were removed from the vehicle. PO Fitterman searched § 87(2)(b) by opening his pants and looking at his boxers (**Allegation A**). As soon as the officers found the marijuana on § 87(2)(b) he told the officers it belonged to him. The officers said that they were all going to be taken to the stationhouse. When § 87(2)(b) protested PO Calderone said to § 87(2)(b) "Shut the fuck up. Shut your fucking mouth" (**Allegation B**). PO Calderone pulled a pair of handcuffs out of § 87(2)(b)'s glove compartment. § 87(2)(b) said that they were his. PO Calderone said "You're going away for life. Your life is fucking over" (**also Allegation B**). PO Calderone took the weed that was found on § 87(2)(b) smelled it and said, "Ahh it smells like fucking balls" (**also Allegation B**). At the 115th Precinct Stationhouse, SGT Clough said, "You know where you fucked up now? You said that you're scared of guns but you have a picture of a gun to your head in your camera" (**Allegation C and D**). SGT Clough also said, "Shut the fuck up. This is a one-way conversation now" (**also Allegation C**). § 87(2)(b) assumed that the officers knew this because they must have looked at the pictures on his digital camera, which was in his car. SGT Clough said, "Have fun looking for a new job. You're definitely not keeping that shit. Go find another job. You think you're a fucking tough guy. Get this kid outta here before I take the fucking cuffs off him and beat the shit out of him" (**Allegation E**). PO Calderone began to escort § 87(2)(b) out of the office and said, "You're a real fucking tough guy. Real tough § 87(2)(b)" (**also Allegation B**). Officers searched § 87(2)(b) again at the precinct and they made him unzip his pants and looked in his pants in front of everybody (**Allegation F**). After being released, § 87(2)(b) went back to his car and observed that the back seat was ripped up (**Allegation G**).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that Allegation A and Allegation F be closed as Victim Uncooperative. § 87(2)(g)
§ 87(2)(g) it is recommended that Allegation B be closed as Unsubstantiated. § 87(2)(g)
§ 87(2)(g) it is recommended that Allegation C be closed as Unsubstantiated. § 87(2)(g)
§ 87(2)(g) it is recommended that Allegation D be closed as Officer(s) Unidentified. § 87(2)(g)
§ 87(2)(g) it is recommended that Allegation E be closed as Unsubstantiated. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that Allegation G be closed as Unsubstantiated.

Summary of Complaint

§ 87(2)(b) was interviewed at the CCRB on August 12, 2008. On July 24, 2008 at approximately 11:30 PM, § 87(2)(b) was driving his car somewhere in Queens with three of his friends inside. § 87(2)(b)'s friends were § 87(2)(b) sitting in the front passenger seat, § 87(2)(b) sitting behind § 87(2)(b) and § 87(2)(b) sitting behind § 87(2)(b). § 87(2)(b) has a goatee and some tattoos, § 87(2)(b) is about 5'9" and § 87(2)(b) is taller and heavier than both of

them. § 87(2)(b) and his friends were not smoking marijuana and they were not using alcohol. None of them were intoxicated in any way. § 87(2)(b) picked up § 87(2)(b) and § 87(2)(b) at 8:00 PM and picked up § 87(2)(b) at 9:30 PM. § 87(2)(b) picked up all of them at their respective residences. § 87(2)(b) and his friends were going to buy some liquor at a store on the corner Northern Boulevard and 108th Street. § 87(2)(b)'s car is registered in his mother's name. It is a gray 2004 330i BMW. § 87(2)(b) was wearing a white tank top and jeans. § 87(2)(b) was not sure of his friend's attire.

§ 87(2)(b) went through a light that was turning red. § 87(2)(b) did not know which direction he was driving or what street he was on but it was a two way street with two lanes of traffic in each direction. Two officers in a black cab-like unmarked sedan with lights and sirens pulled § 87(2)(b) over to the right. § 87(2)(b) saw PO1 exit the driver's seat of the unmarked car. PO1 was a white male 5'8" to 5'9" with dirty blonde hair, dressed in jeans and a green shirt (identified by the investigation as Officer Jeffrey Fitterman). PO2 approached the car as well but stayed back. § 87(2)(b) could not remember the description of PO2 other than him being male (identified by the investigation as Officer Richard Healey). PO Fitterman asked § 87(2)(b) to be honest and asked him if he smoked marijuana and § 87(2)(b) said that he did smoke marijuana. PO Fitterman asked if he had anything in his car that he should not have. § 87(2)(b) told him no. PO Fitterman asked everybody else in the car and they said no. PO Fitterman asked § 87(2)(b) if his door was open and § 87(2)(b) said no and opened his door. When § 87(2)(b) opened his door, PO Fitterman looked in the door and around the car and shined his flash light. PO Fitterman looked into § 87(2)(b)'s car and said, "I see some weed shavings in the car on the floor." A couple seconds later, 8 or 9 more cop cars arrived on the scene. There were one or two additional unmarked cars and the rest were marked cars. § 87(2)(b) remembered two officers, PO3 and PO4, exiting one of the unmarked cars. PO3 was a 6'3", 300 pound, white male with very short hair who was dressed in plainclothes (identified by the investigation as Officer Vincent Calderone). § 87(2)(b) believed that PO Calderone was the driver of the unmarked car. PO4 was a 5'10", Hispanic or black male, who had wavy dark hair in a short afro (identified by the investigation as Sergeant Francis Clough). SGT Clough was wearing jeans and a navy blue shirt with a badge on the shirt. The shirt had a star on it and it said something like "New York New Jersey Courts."

PO Fitterman said that he was going to search them all. PO Fitterman asked § 87(2)(b) to step out of the car first. § 87(2)(b) stepped out and walked to the back of his car. PO Fitterman said that he was going to search him and everybody else and that he was going to search his car and if nothing comes up then he would let them go without a ticket. § 87(2)(b) said that that was fine. PO Fitterman searched § 87(2)(b) by putting his hands inside the front and back pants pockets. PO Fitterman found nothing and § 87(2)(b) had nothing on him. PO Fitterman pulled § 87(2)(b) out next and searched him, followed by § 87(2)(b) and § 87(2)(b). § 87(2)(b) was not sure if § 87(2)(b) and § 87(2)(b) were searched but they were frisked by PO Fitterman. PO Fitterman searched § 87(2)(b) by opening his pants and looking at his boxers. § 87(2)(b) had a few bags, maybe 6 or 7, of marijuana inside of his underwear. § 87(2)(b) was not sure how the officers found it.

As soon as the officers found it, § 87(2)(b) said to the officers, "This has nothing to do with them. This is on me. Let them go." The officers said that they were all going to be taken in. § 87(2)(b) said "C'mon this isn't right. You guys are arresting us for a little thing of weed. There's murderers out there." PO Calderone said to § 87(2)(b) "Shut the fuck up. Shut your fucking mouth." The officers searched § 87(2)(b)'s car and they found a small piece of a marijuana cigarette under the driver's seat. § 87(2)(b) did not remember having this marijuana cigarette because he had not smoked marijuana for a long time. § 87(2)(b) did not know which officer found the marijuana cigarette under the driver seat of his car because there were so many officers there at that moment.

Officers from the other cars handcuffed § 87(2)(b) and his friends but § 87(2)(b) did not remember who handcuffed them. PO Calderone pulled handcuffs out of § 87(2)(b)'s glove compartment. PO Calderone said "Whose are these?" § 87(2)(b) said that they were his. PO Calderone said, "You're going away for life. Your life is fucking over." PO Fitterman put the handcuffs on his waist and did not vouch for it as arrest evidence and they were never returned to him. § 87(2)(b) obtained those handcuffs from his old job as a superintendent. PO Calderone took the weed that was found on § 87(2)(b) smelled it and said "Ahh it smells like fucking balls."

§ 87(2)(b) and his friends were taken to the 115th Precinct. § 87(2)(b) was pulled out of the cell and sat down in an office area where § 87(2)(b) was interrogated by officers, including SGT Clough, who asked him for information to try to arrest somebody else. PO Fitterman was present also. SGT Clough asked § 87(2)(b) “Where can I get guns?” § 87(2)(b) said, “I don’t know. I don’t like guns. I’m scared of guns.” SGT Clough said, “Would you like me to hide my gun?” § 87(2)(b) said, “Why would I want you to hide your gun? You’re a police officer.” SGT Clough said “You know where you fucked up now? You said that you’re scared of guns but you have a picture of a gun to your head in your camera.” While § 87(2)(b) tried to explain SGT Clough said, “Shut the fuck up. This is a one-way conversation now.” § 87(2)(b) assumed that the officers knew this because they must have looked at the pictures on his digital camera, which was in his car. § 87(2)(b) explained to the officers that that picture was at a shooting range in Georgia when visiting his sister who is in the Army. SGT Clough said that he was going to raid § 87(2)(b)’s house with ATF and arrest his mother. § 87(2)(b) and his family are not acquainted with SGT Clough. SGT Clough said, “Have fun looking for a new job. You’re definitely not keeping that shit. Go find another job. You think you’re a fucking tough guy. Get this kid outta here before I take the fucking cuffs off him and beat the shit out of him.” PO Calderone began to escort § 87(2)(b) out of the office and said, “You’re a real fucking tough guy. Real tough § 87(2)(b).” § 87(2)(b) believed PO Fitterman heard this comment. § 87(2)(b) did not understand why the officers were so hostile because he was respectful and did not give them any attitude.

§ 87(2)(b) was placed back in the cell. Officers searched § 87(2)(b) again at the precinct and they made him unzipper his pants and looked in his pants in front of everybody. § 87(2)(b), § 87(2)(b) and § 87(2)(b) went to Central Booking but § 87(2)(b) was released from the precinct. The officers let § 87(2)(b) go home and take § 87(2)(b)’s car. § 87(2)(b) learned that the officers said that they found 10 bags of weed cigarette in the center console of the car which was false.

When § 87(2)(b) went back to his car, the back seat was ripped up. § 87(2)(b) has not taken his car to a shop and has not got an estimate on the damage. § 87(2)(b) conferred with his friends and realized that he was the only one interrogated at the precinct. § 87(2)(b) still cannot remember how a marijuana cigarette got under the seat of his car. [Enclosure 9a-9e]

Results of Investigation

Efforts to Contact Witnesses

The undersigned attempted to interview § 87(2)(b), § 87(2)(b) and § 87(2)(b) without success. On August 18, 2008, the undersigned called § 87(2)(b) but was unable to leave a voice message and then sent a please-call letter to him. On August 18, 2008, the undersigned contacted § 87(2)(b) and scheduled an interview for August 20, 2008. On August 18, 2008, the undersigned contacted § 87(2)(b) and scheduled an interview for August 21, 2008. On August 20 and 21, 2008, § 87(2)(b) and § 87(2)(b) missed their respective appointments without calling ahead to cancel or reschedule. On August 26, 2008, the undersigned called § 87(2)(b) and § 87(2)(b) and left voice messages that informed them of their missed appointments. On August 26, 2008, the undersigned called § 87(2)(b) but was unable to leave a voice message. On August 26, 2008, missed-appointment letters were sent to § 87(2)(b) and § 87(2)(b) and a final please-call letter was sent to § 87(2)(b). On September 29, 2008, the undersigned called § 87(2)(b) and reached a female who took a message for § 87(2)(b) and provided an alternative phone number that turned out to be disconnected. On October 22, 2008, the undersigned left a voice message with § 87(2)(b) informing him that § 87(2)(b), § 87(2)(b) and § 87(2)(b) have not yet provided statements and must call the CCRB if they plan to participate in the investigation. On December 31, 2008, the undersigned called § 87(2)(b) but the call did not go through. [Enclosure 25a-25k]

Police Officer Statements

Office Richard Healey (Subject Officer)

Officer Richard Healey was interviewed at the CCRB on December 5, 2008. On July 24, 2008, PO Healey worked from 5:30 PM to 2:05 AM, assigned to SNEU in § 87(2)(e), § 87(2)(f), an unmarked black Chevy Impala. PO Healey was working with PO Fitterman and dressed in plainclothes. PO Healey had the following memo book entries related to the incident.

11:40 PM - 4 under arrest at 94 Street and 31st Avenue

On July 24, 2008 at approximately 11:30 PM, PO Healey was stopped, heading east bound, at a red light at 30th Av and 94th St. The light turned green and PO Healey proceeded through the intersection. PO Fitterman drove and PO Healey was the passenger. The defendants (identified by the investigation as § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b)) were driving a vehicle and went through a red light going southbound on 94th Street. It was dark out and therefore PO Healey could see the red light in their direction. PO Healey activated the turret lights and pulled them over on 31st Avenue and 94th Street. PO Healey walked to the passenger's side of the car and PO Fitterman walked to the driver's side. The windows were down and there was a strong smell of marijuana in the car. There was a marijuana cigarette in the center console of the car. PO Healey ordered § 87(2)(b) and company to exit the car and walk to the back bumper, which they did. PO Healey handcuffed § 87(2)(b) a heavy set Hispanic male, and § 87(2)(b). PO Healey searched § 87(2)(b) and § 87(2)(b) for weapons and contraband. § 87(2)(b) had 10 small ziplock bags of marijuana in his waistband. PO Fitterman handcuffed § 87(2)(b) the driver, and § 87(2)(b) and PO Fitterman probably searched them also.

PO Healey recovered the marijuana from § 87(2)(b) because he had a zip lock bag sticking out of his waistband and PO Healey pulled it out. To PO Healey's knowledge, § 87(2)(b) was never strip searched at anytime. PO Healey went back to the car and searched it to recover the marijuana cigarette in the center console. PO Healey was the only officer who searched the car. PO Healey did not damage the car and he knew of no damages. PO Healey searched the seats, floor and center console area where the marijuana cigarette was put out. PO Fitterman stayed with the males outside the car. PO Healey called SGT Clough to the scene. SGT Clough arrived at the scene, with his driver PO Vincent Calderone, to verify the arrest. PO Healey showed SGT Clough the marijuana cigarette and the ziplock bags. PO Healey never heard PO Calderone say to the males, "Shut the fuck up" or "Shut your fucking mouth." PO Healey did not recall a pair of handcuffs being recovered from § 87(2)(b)'s car. PO Healey did not hear PO Calderone say to the males, "Whose handcuffs are these?" or "You're going away for life. Your life is fucking over." PO Healey did not hear PO Calderone tell § 87(2)(b) that the ziplock bags of marijuana "smells like fucking balls" and PO Healey did not say this to § 87(2)(b) when he recovered the marijuana. PO Healey heard no officer make that comment. SGT Clough and PO Calderone transported § 87(2)(b) and § 87(2)(b) to the 115th Precinct Stationhouse and PO Healey and PO Fitterman took § 87(2)(b) and § 87(2)(b).

The males were brought to the 115th Precinct where PO Healey told the males that they would receive a desk appearance ticket if they qualified but three of the males did not qualify. Those three went to Central Booking while one male was released from the precinct. PO Healey was not aware if the males were debriefed at the stationhouse. PO Healey was not aware if SGT Clough brought one of the males into an interview room. PO Healey did not voucher any photos or photos from a cellular phone. PO Healey did not know about a photo of one of the males holding a gun to his head. PO Healey never heard SGT Clough ask the males "Where can I get guns." PO Healey never heard PO Calderone say to the male driver, "You're a real fucking tough guy. Real tough § 87(2)(b)." PO Healey was not aware of PO Calderone and SGT Clough having an interaction with the males. [Enclosure 10a-10c]

Officer Jeffrey Fitterman (Subject Officer)

Officer Jeffrey Fitterman was interviewed at the CCRB on December 4, 2008. PO Fitterman worked from 5:30 PM on July 24, 2008 to 2:05 AM on July 25, 2008. PO Fitterman was assigned to conditions. PO

Fitterman was partnered with PO Healey and was in plain clothes. He was assigned an unmarked § 87(2)(e), § 87(2)(f) [REDACTED], a black Impala and was the primary operator. He had no memo book entries regarding the incident.

On July 24, 2008 at approximately 11:30 PM, PO Fitterman conducted a car stop in the vicinity of 94th Street and 31st Avenue in Queens. The car was pulled over for a VTL violation, but PO Fitterman did not recall what the specific violation was at the time of his interview. PO Fitterman approached the driver's side of the car and asked the driver for his license and registration. PO Healey approached on the passenger side, but PO Fitterman was unaware if he talked with any of the passengers. Upon speaking to the driver, PO Fitterman detected a strong odor of marijuana smoke emanating from the vehicle. PO Fitterman used his flashlight and saw the driver's hands on the steering wheel. PO Fitterman did not observe any marijuana in the car. PO Fitterman then asked the driver to exit the vehicle but did not recall if he explained to the driver why he was being asked to step out. PO Fitterman brought the driver to the rear of the vehicle. PO Healey then entered the vehicle, searched and found marijuana in a location that PO Fitterman did not observe. PO Fitterman handcuffed the driver and searched him for weapons by going into pockets. PO Fitterman may have conducted a frisk and search on one more individual in the vehicle, but could not definitively recall. PO Fitterman did not find any additional contraband or weapons on the male he frisked and searched. One of the arrested males was a big heavyset male (identified by the investigation § 87(2)(b) [REDACTED]). PO Fitterman did not recall if searched § 87(2)(b) [REDACTED].

PO Fitterman and PO Healey called their supervisor, SGT Clough, to the scene. SGT Clough arrived in a car but PO Fitterman did not recall whether it was marked or unmarked. PO Fitterman believed that SGT Clough was in plainclothes on that evening. While at the location, PO Fitterman did not recall if SGT Clough or PO Calderone interacted with the arrested males. PO Fitterman did not see anyone search into the heavyset male's underwear or conduct a strip search on him at any time. PO Fitterman did not hear PO Calderone state to the males anything to the effect of, "Shut the fuck up," "Shut your fucking mouth," "You are going away for life, your life is fucking over," or "It smells like fucking balls." PO Fitterman did not recall any of the males being loud or irate. During the search of the vehicle, PO Fitterman did not recall if handcuffs were recovered from the vehicle or recall if PO Calderone addressed the finding of such an item. PO Fitterman did not recollect any photo of a male holding a gun to his head being recovered either from the car or as a screensaver on any of the male's cell phones.

PO Fitterman did not recall any other officers appearing on scene and did not recall a patrol van arriving. PO Fitterman stated that he probably transported some of the males back to the precinct but was not sure. PO Fitterman was not aware of any damages to the car or what happened to it once they left. He did not recall whether it was still on scene when he left. PO Fitterman was not aware of what happened to the males after arrest processing and was not aware of any debriefing. PO Healey was the arresting officer. [Enclosure 11a-11d]

Sergeant Francis Clough (Subject Officer)

Sergeant Francis Clough was interviewed at the CCRB on December 4, 2008. SGT Clough was assigned as the Street Narcotics Enforcement Unit Supervisor from 5:15 PM on July 24, 2008 to 2:12 AM on July 25, 2008. He was supervising a team of seven other officers, was in uniform and most likely was driving an unmarked vehicle. SGT Clough did not recall who was working for him or who he was partnered with on the day of the incident. He stated that he was most likely in an unmarked vehicle. He did not have any memo book entries regarding the incident.

SGT Clough recalled that he responded to the vicinity of 31st Avenue and 94th Street in Queens to verify arrests made by one of his officers. SGT Clough believed that it was PO Calderone and PO Fitterman that requested his presence and they were assigned to an unmarked vehicle. When he arrived on scene, he observed four males in handcuffs (identified by the investigation as § 87(2)(b) [REDACTED], § 87(2)(b) [REDACTED], § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED]). One of the males was a heavyset Hispanic (identified as § 87(2)(b) [REDACTED]). SGT Clough does not recall a description of the car that was stopped and he did not see any of the males being frisked or searched because they were already in handcuffs when he arrived.

SGT Clough remembered that they had probable cause for the arrest and that he called for a marked patrol car to help transport the males back to the 115th Precinct. While on scene, SGT Clough did not view a search of the vehicle and did not participate in the search of the car. SGT Clough recalled that § 87(2)(b) acted in an irate manner and protested his arrest when he stated that he had nothing to do with the other males. SGT Clough did not speak to § 87(2)(b) nor did he hear or see the other officers do so. SGT Clough never heard PO Calderone tell the males to “shut up” nor did he hear PO Calderone say specifically to § 87(2)(b) “Shut the fuck up,” or “Shut your fucking mouth.” SGT Clough did not hear PO Calderone say to the males anything to the effect of, “You are going away for life, you life is fucking over.” SGT Clough never heard PO Calderone state that the marijuana bag “Smells like fucking balls.” SGT Clough was unaware of what happened with the car after the arrest, with specific regards to the rear of the seat being torn apart.

Once at the precinct, SGT Clough interviewed all four of the males for the field intelligence interview. SGT Clough stated that he had this responsibility as the field intelligence officer was not present for duty that evening. During this interview, SGT Clough asked the males questions that were unrelated to their arrest that evening. Another officer was present during the questioning, but SGT Clough did not remember who. The interview took place in an office in the precinct stationhouse and the males were in handcuffs during the interview.

SGT Clough interviewed one of the males (identified by the investigation as § 87(2)(b) where he asked him questions about firearms. § 87(2)(b) stated to SGT Clough that he was scared of firearms and would never touch one. At some point during the interview, § 87(2)(b)'s cell phone, which was invoiced, revealed a screensaver picture of § 87(2)(b) holding a firearm to his own head. An officer, that SGT Clough did not recall, brought this fact to his attention during the interview. SGT Clough then stated to § 87(2)(b) “You told me you were afraid of firearms, is there any reason that you are pointing a gun to your head?” When asked if he recalled the following dialogue, SGT Clough stated that he did not recall him asking § 87(2)(b) if he wanted him (SGT Clough) to hide his gun in deference to his alleged fear of firearms, nor did § 87(2)(b) state in return, “Why would I want you to hide your gun? You are a police officer.” SGT Clough did not state, “You know where you fucked up now? You say you are scared of guns, but you have a picture of a gun to your head in your camera.” During his field intelligence interviews with the males, SGT Clough did not state the following to them; “Shut the fuck up, this is a one way conversation,” “Get this kid out of hear before I take the fucking cuffs off and beat the shit out of him,” “Have fun looking for a new job, you are definitely not keeping that shit,” or “You think you are a fucking tough guy.” SGT Clough also stated that he did not threaten § 87(2)(b) with raiding his house with the ATF and arresting his mother. While at the precinct stationhouse, SGT Clough did not hear PO Calderone state to the males, “You are a real fucking tough guy, a real tough § 87(2)(b).” SGT Clough also did not authorize a strip search of § 87(2)(b) did not observe one being conducted nor was aware of one. SGT Clough was also unaware of what happened to the four males, whether they were released or sent to Central Booking. [Enclosure 12a-12d]

Officer Vincent Calderone (Subject Officer)

Officer Vincent Calderone was interviewed at the CCRB on December 4, 2008. PO Calderone served a tour of duty from 5:30 PM on July 24, 2008 to 2:05 AM on July 25, 2008. He was assigned to a Street Narcotics Enforcement Team and was partnered with SGT Clough. PO Calderone was in plain clothes and was assigned to an unmarked black Crown Victoria. He had no memo book entries regarding this incident.

PO Calderone had no independent recollection of his activities on July 24, 2008 at 11:30 PM. His memory was not refreshed when an incident regarding a car stop by PO Healy was recounted to him during his interview. PO Calderone stated that his SNEU team makes approximately 80 arrests per month. PO Calderone was familiar with the location of the incident, the intersection of 31st Avenue and 94th Street in Queens. PO Calderone did not recognize the photographs presented to him of § 87(2)(b) or § 87(2)(b). PO Calderone's memory was not refreshed by the distinctive tattoo that § 87(2)(b) has on his neck. PO Calderone did not have any recollection of the following allegations; an officer stated, “Ugh, it smells like balls,” to a bag of marijuana recovered from the boxer shorts of § 87(2)(b).

§ 87(2)(b) the questioning of the arrestees back at the 115th Precinct stationhouse after their arrest or a picture of one of the arrestees holding a firearm that was recovered from their vehicle. [Enclosure 13a-13e]

Police Documents

Sprint

The Sprint Print Out indicated that there was a car stop on 94th Street and 31st Avenue and 4 individuals were under arrest at 11:30 PM. Officers from the 115th Precinct known as “PP3” (a foot post), “SP8” (an anti-crime auto) and “ST2” (a sergeant) arrived at the scene just two minutes apart. Four individuals were under arrest. [Enclosure 15a-15c]

Command Log

The 115th Precinct Command Log indicated that § 87(2)(b), § 87(2)(b) and § 87(2)(b) were arrested, their physical and mental condition was noted as normal and they were transported to Central Booking. There was no indication that SGT Clough authorized a strip search. PO Healey was the arresting officer. [Enclosure 16]

Prisoner Holding Pen Roster

The 115th Precinct Prisoner Holding Pen Roster indicated that § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were in the cell at 11:45 PM. § 87(2)(b), § 87(2)(b) and § 87(2)(b) went to Central Booking at 2:58 AM in a van and § 87(2)(b) was released with a Desk Appearance Ticket and all property was returned to him. [Enclosure 17]

Roll Call

The 115th Precinct Roll Call Tour 3 indicated that SGT Clough was assigned as the Street Narcotics Enforcement Unit Sergeant and PO Fitterman, PO Healey and PO Calderone were assigned as the SNEU officers. [Enclosure 18a-18j]

Property Voucher

Voucher # § 87(2)(b) was for § 87(2)(b) which vouchered 1 marijuana cigarette, 10 small bags of marijuana and 1 clear plastic bag. [Enclosure 19]

Arrest Report Supplement

The arrest report supplement for § 87(2)(b) stated that he was found in possession of 10 bags of marijuana. [Enclosure 20]

Complaint Report UF61

The Complaint Report indicated that § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) were traveling southbound on 94th Street and passed a steady red light at 30th Avenue. They had a marijuana cigarette in the center console of a 2004 BMW NY registration § 87(2)(b). Upon further investigation § 87(2)(b) had 10 bags of marijuana on his person. [Enclosure 21a-21b]

On-Line Booking Sheets and Arrest Reports

The OLBS and arrest report for § 87(2)(b) indicated that he was found in possession of marijuana. The OLBS and arrest report for § 87(2)(b) indicated that he was found in possession of marijuana. The OLBS and arrest report for § 87(2)(b) indicated that he was driving south bound on 94th Street and passed a steady red light at 30th Avenue and upon further investigation § 87(2)(b) was found to be in possession

of marijuana. The OLBS and arrest report for § 87(2)(b) stated that he was found in possession of 10 bags of marijuana. [Enclosure 22a-22p]

Criminal Court Complaint Report and Supporting Deposition

The Supporting Deposition for § 87(2)(b) indicated that he was driving and passed a steady red light and a marijuana cigarette was recovered from the center console of his 2004 BMW NY registration § 87(2)(b). The Supporting Deposition for § 87(2)(b) indicated that he was a passenger in a vehicle that passed a steady red light and a marijuana cigarette was recovered from the center console of the vehicle. The Supporting Deposition for § 87(2)(b) indicated that he was a passenger in a vehicle that passed a steady red light and a marijuana cigarette was recovered from the center console and 10 bags of marijuana were found from his front pants zipper area. [Enclosure 23a-23c]

Conviction History

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Subject Officer CCRB Histories

In their 4 year tenures with the NYPD, PO Fitterman and PO Healey have no substantiated CCRB cases. In his 4 year tenure with the NYPD, PO Calderone has one substantiated case with the CCRB. In case 200609865, PO Calderone was substantiated for refusing to process a civilian complaint and he received “Instructions” as the NYPD disposition and penalty. In his 13 year tenure with the NYPD, SGT Clough has one substantiated case with the CCRB. In case 200306172, SGT Clough was substantiated for physical force and a threat of arrest. SGT Clough received no disciplinary action for the threat of arrest and the Department was unable to prosecute. The NYPD disposition and penalty for the physical force was “Negttn-Guilty” and Command Discipline – A plus the loss of 3 vacation days. [Enclosure 1, 2, 3 and 4]

Civilian CCRB History

This is the first complaint that § 87(2)(b) has filed with the CCRB. There is no record of § 87(2)(b) and § 87(2)(b) being a complainant, victim or witness in any other CCRB cases. [Enclosure 5]

Conclusions and Recommendations

Officer Identification

PO1 was identified as PO Fitterman because he admitted to being the officer who initially approached § 87(2)(b) on the driver’s side of the car. PO2 was identified as PO Healey because he admitted that he approached the passenger side of the car at the beginning of the car stop. PO3 was identified as PO Calderone based on the near matching physical description that § 87(2)(b) provided and PO Healey’s statement that PO Calderone was SGT Clough’s driver. PO4 was identified as SGT Clough based on § 87(2)(b)’s matching description and SGT Clough admission to interviewing § 87(2)(b) at the stationhouse.

Undisputed Facts

There is no dispute that § 87(2)(b) passed through a red light and did have a fraction of a marijuana cigarette in his car. There is no dispute that SGT Clough saw a photo of § 87(2)(b) with a gun to his head and then questioned § 87(2)(b) about it at the 115th Precinct Stationhouse.

Disputed Facts

§ 87(2)(g)

Assessment of Evidence

§ 87(2)(g)

Allegations Not Pled

§ 87(2)(g)

Allegation A: Abuse of Authority: Officer Jeffrey Fitterman strip searched § 87(2)(b)

Allegation F: Abuse of Authority: At the 115th Precinct Stationhouse, officers strip-searched § 87(2)(b)

§ 87(2)(b) alleged that PO Fitterman searched § 87(2)(b) by opening his pants and looking at his boxers. § 87(2)(b) claimed that while at the 115th Precinct Stationhouse, § 87(2)(b) had to unzip his pants and officers looked in his pants in front of everybody. § 87(2)(g)

it is recommended that Allegation A and Allegation F be closed as Victim Uncooperative.

Allegation B: Discourtesy: Officer Vincent Calderone spoke obscenely and/or rudely to § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that PO Calderone said to § 87(2)(b) “Shut the fuck up. Shut your fucking mouth,” and then said to § 87(2)(b) “You’re going away for life. Your life is fucking over.” § 87(2)(b)

alleged also that PO Calderone said § 87(2)(b) s marijuana bags, “Smells like fucking balls.” PO Calderone claimed not to recall the incident and the other officers claimed that they heard no such comments. § 87(2)(g) it is recommended that Allegation B be closed as Unsubstantiated.

Allegation C: Discourtesy: At the 115th Precinct Stationhouse, Sergeant Francis Clough spoke obscenely and/or rudely to § 87(2)(b)

§ 87(2)(b) claimed that while at the 115th Precinct Stationhouse, SGT Clough said to him, “You fucked up now”, “Shut the fuck up. This is a one-way conversation now” and “Have fun looking for a new job. You’re definitely not keeping that shit. You think you’re a fucking tough guy.” SGT Clough denied the allegations § 87(2)(g) it is recommended that Allegation C be closed as Unsubstantiated.

Allegation D: Abuse of Authority: An officer searched § 87(2)(b) s property.

§ 87(2)(b) claimed that an officer must have searched his camera because SGT Clough stated to him at the 115th Precinct Stationhouse “You have a picture of a gun to your head in your camera.” SGT Clough stated that § 87(2)(b) s cell phone was invoiced which revealed a screensaver picture of § 87(2)(b) holding a firearm to his own head and an officer, whom SGT Clough did not recall, brought this to SGT Clough’s attention. PO Healey claimed that he did not voucher any photos from any device and was not aware of a photo of a gun to § 87(2)(b) s head. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation D be closed as Officer(s) Unidentified.

Allegation E: Abuse of Authority: At the 115th Precinct Stationhouse, Sergeant Francis Clough threatened § 87(2)(b) with the use of force.

§ 87(2)(b) claimed that while at the 115th Precinct Stationhouse, SGT Clough said to him, “Get this kid outta here before I take the fucking cuffs off him and beat the shit out of him.” SGT Clough claimed that he never said this. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation E be closed as Unsubstantiated.

Allegation G: Abuse of Authority: Officer Richard Healey damaged § 87(2)(b) s property.

§ 87(2)(b) claimed that when he went back to his car, the back seat was “ripped up”. SGT Clough, PO Healey, PO Calderon and PO Fitterman denied causing any damages to the car. PO Healy claimed that he was the only officer who searched the car and because PO Healey was the arresting officer, the welfare and vouchering of the car was PO Healey’s responsibility. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation G be closed as Unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: